

ORDER SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Crl. Misc. No. 3526-B of 2019

Rafi Ullah

VS.

The State & another.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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18.06.2019

Abdul Qayyum Rao, Advocate for the petitioner.
Mr. Wazir Iqbal Khan Niazi, Assistant Attorney General,
Pakistan.

Through the instant petition under section 497 Cr.P.C., the petitioner, namely Rafi Ullah is seeking post-arrest bail in the case FIR No. 19 of 2019 dated 18.05.2019 registered at Police Station FIA/CBC, Multan, in respect of offences under section 4,8 and 23 of the Foreign Exchange Regulation Act, (VII of 1947) and sections 3 and 4 of Anti Money Laundering Act, 2010 and sections 420 and 109 PPC.

2. As per contents of FIR there was information to the FIA regarding hundi/hawala business by certain people. That on 18.05.2019, on the report of the informer, a raiding team was established, which intercepted a bus and the petitioner Rafi Ullah got recovered a bag containing Rs.1,00,00,000/- which was taken into possession.

3. I have heard learned counsel for petitioner and the learned Assistant Attorney General , Pakistan and have gone through the record.

4. No doubt huge quantity of currency has been recovered from the petitioner but the said currency was Pakistani currency and there is nothing on record to suggest that the said amount was derived from any illegal business of Hundi/Hawala or other unlawful means, which is a question, cannot be resolved on the basis of material available on record and needs further inquiry under section 497(2), Cr.P.C. Mere taking/ possessing local

money is not a crime until and unless the same is proved to be derived from any illegal means. Section 3 of the Act, prescribes the offence of money laundering, while Section 4 provides the punishment for commission of such an offence. On cumulative reading of sections 3 and 4 of Anti Money Laundering Act, 2010, the expression ' proceeds of crime appears to be a prerequisite of an offence committed under the Act. It shows that any money or property derived or obtained by any person directly or indirectly as a result of criminal activity is said to be proceeds of crime. The prosecution could not bring any documentary evidence which could depict that petitioner was dealing in Hundi/Hawala business. Besides, there is nothing on record regarding previous history of conviction or involvement of petitioner in such like offences. Despite remaining in police custody, petitioner made no confession before the competent Court, and is behind the bars since his arrest and no more required to the local police for further interrogation. When learned Assistant Attorney General , Pakistan was confronted with applicability of section 409, P.P.C. as to whether in the circumstances of the case it has rightly been applied, he frankly conceded that it is not applicable.

5. For the foregoing reasons, the petition in hand is accepted and the petitioner is admitted to post-arrest bail subject to his furnishing bail bonds in the sum of Rs.10,00,000/- (Rupees ten lac Only) with two sureties each in the like amount to the satisfaction of learned trial court.

6. Needless to mention that any observations made in the above order are tentative in nature and shall not influence the trial court.

(Sadiq Mahmud Khurram)
JUDGE

Raheel

Approved for Reporting

Judge